



CHAPTER xlv

An Act to confer further powers on the Southampton Harbour Board and for other purposes.

[30th July 1949.]

WHEREAS by the Southampton Harbour Act 1863 the 26 & 27 Vict. Southampton Harbour and Pier Board were constituted c. cxix. and by the Southampton Harbour Act 1877 the name of 40 & 41 Vict. the said Board was changed to the "Southampton Harbour c. lxxxi. Board":

And whereas by the Southampton Harbour Act 1913 the said 3 & 4 Geo. 5. Southampton Harbour Board were dissolved and a new board c. lxxxii. (hereinafter referred to as "the Board") were as therein mentioned constituted under the same name:

And whereas by the Southampton Harbour Acts 1863 to 1939 powers and authorities have been conferred on the Board and their predecessors for the improvement of the port of Southampton (hereinafter referred to as "the port") and the Board and their predecessors have under the authority of the said Acts from time to time improved the port and extended the quays and works connected therewith:

And whereas it is expedient that the channels of the port within the limits of the jurisdiction of the Board and also the channel of the Solent at or near Thorn Knoll should be deepened dredged widened and improved:

And whereas under and by virtue of the before-mentioned Acts the Southampton Harbour (Increase of Charges) Order 1942 and the Royal Pier Southampton (Increase of Charges) Order 1947 the Board are authorised to charge levy and recover various dues rates tolls and charges more particularly prescribed by the said Acts and Orders and it is expedient that certain of the said dues rates tolls and charges should be amended as by this Act provided:

14 & 15 Geo. 5.
c. xxxi.

1 & 2 Geo. 5.
c. lxiii.

And whereas under the provisions of the Southampton Harbour Acts 1863 to 1903 or under the Southampton Harbour Act 1924 the Board or their predecessors were empowered to borrow or raise for the general purposes of the Board or of their undertaking the sum of four hundred and sixty thousand four hundred and fifty pounds and by the Southampton Harbour Act 1911 were authorised to raise the further sum of two hundred thousand pounds to be spent upon the deep water channel of the port and the Board and their predecessors have raised under the said Acts of 1863 to 1903 for such general purposes three hundred and sixty thousand four hundred and fifty pounds under the said Act of 1911 one hundred and thirty-one thousand five hundred and sixty-nine pounds and under the said Act of 1924 sixty-three thousand eight hundred and five pounds by the creation and issue of Southampton Harbour redeemable stock and it is expedient that the Board should be empowered to raise further moneys for the general purposes of the Board and their undertaking:

And whereas it is expedient for the better preservation of certain of the waterways and the safety and convenience of navigation within the port that provision should be made for re-defining the existing lines and prescribing new lines to the riverward side whereof quays erections and other works or any part of any such works on the bed or either bank or shore of the river Itchen or the river Hamble may not be constructed:

And whereas it is expedient that such other provisions should be made as are in this Act hereinafter contained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1. This Act may be cited as the Southampton Harbour Act 1949 and the Southampton Harbour Acts 1863 to 1939 and this Act may be cited together as the Southampton Harbour Acts 1863 to 1949.

2. This Act is divided into Parts as follows:—

Part I—Preliminary.

Part II—Dues rates tolls and charges.

Part III—Finance.

Part IV—Miscellaneous.

PART I

—cont.

Division of Act
into Parts.

3. The Harbours Docks and Piers Clauses Act 1847 (except sections 6 to 13 16 to 19 (unless the Board are required by the Minister to provide and maintain a lifeboat together with a tide gauge and a barometer) 25 26 30 and 93 and except where expressly varied by or inconsistent with the provisions of the existing Acts and this Act) is incorporated with and forms part of this Act and in construing the said incorporated Act the expression "the harbour dock or pier" shall mean the port as in this Act defined and the expression "the undertakers" shall mean the Board and the expression "the special Act" shall mean this Act.

Incorporation
of Harbours
Docks and
Piers Clauses
Act 1847.
10 & 11 Vict.
c. 27.

4.—(1) In this Act unless there be something in the subject or context repugnant to such construction— Interpretation.

"The Board" means the Southampton Harbour Board;

"The clerk" means the clerk to the Board;

"Enactment" means any Act of Parliament whether public general local or private any order or scheme made under an Act of Parliament or any provision in an Act of Parliament or in any such order or scheme;

"The existing Acts" means the Southampton Harbour Acts 1863 to 1939;

"Master" when used in relation to any ship means the person having the command or charge of the ship for the time being;

"The Minister" means the Minister of Transport;

"Owner" when used in relation to goods shall include any consignor or consignee shipper or agent for the sale or custody loading or unloading of such goods as well as the owner thereof and when used in relation to any ship shall include any part-owner charterer consignee or mortgagee in possession;

"Pier" means the pier erected under the authority of the Act 1 & 2 William 4. c. I and the Act 1 Vict. c. LXIII and shall include the widening of the pier authorised by the Southampton Harbour Act 1882 and any pontoon or landing-stage which has been or may be constructed by the Board in connection therewith;

"The port" means the port of Southampton as defined in section 5 (Defining the port) of the Southampton Harbour Act 1887;

45 & 46 Vict.
c. clxiv.

50 & 51 Vict.
c. lii.

PART I
—cont.

“ Quay ” includes any wharf pier pontoon landing-place land or other legal quay of the Board ;

“ Ship ” includes any vessel lighter keel barge boat raft pontoon and craft of any kind however navigated propelled or moved ;

“ Statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery.

38 & 39 Vict.
c. 83.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

DUES RATES TOLLS AND CHARGES

Harbour
tonnage dues.

5. The Board may demand and take in respect of any ship coming into or going out of the port according to its register tonnage the harbour tonnage dues set forth in the First Schedule to this Act.

Harbour
tonnage dues
on ships using
but not
coming into
port.

6. The Board may demand and take in respect of any ship not coming into the port but making use of the facilities of the port by means of lighters tenders packet boats or otherwise harbour tonnage dues not exceeding half the respective harbour tonnage dues set forth in the First Schedule to this Act.

Reduction of
harbour
tonnage dues
in certain
cases.

7. Notwithstanding anything in the Southampton Harbour Acts 1863 to 1949 the Board may demand and take in respect of any ship coming into or going out of the port but not coming north of Fawley Beacon such harbour tonnage dues being less than the harbour tonnage dues imposed by section 5 (Harbour tonnage dues) of and the First Schedule to this Act as the Board may from time to time determine.

Harbour
tonnage dues
to be equal
in like
circumstances.

8. The harbour tonnage dues referred to in the last three preceding sections shall at all times be charged equally to all persons in respect of the same description of ship under like circumstances.

Quay and pier
tonnage dues.

9. The Board may demand and take in respect of any ship lying alongside or using any quay or pier belonging to the Board according to its register tonnage the quay and pier tonnage dues set forth in the Second Schedule to this Act.

10. The Board may demand and take in respect of any goods landed or transhipped at or deposited upon or shipped from or unshipped at any quay belonging to the Board the rates set forth in the Third Schedule to this Act.

PART II
—cont.

Rates on
goods.

11. The Board may demand and take in respect of any goods discharged from or loaded into any ship lying alongside or using any quay belonging to the Board (other than moorings not being moorings at any such quay) into or from lighters or other craft lying alongside such ship or discharged from any ship overside into lighters or other craft or into the water rates not exceeding half the respective rates set forth in the Third Schedule to this Act.

Rates on
goods
discharged into
and from
lighters &c.

12. The Board may demand and take in respect of any passengers or other persons landing on embarking from or otherwise using the pier and also in respect of any vehicles animals and luggage drawn on landed on or embarked from the pier the several pier tolls and charges set forth in the Fourth Schedule to this Act.

Pier tolls and
charges.

13. The pier tolls payable in respect of passengers under section 12 (Pier tolls and charges) of and the Fourth Schedule to this Act shall be payable in respect of all passengers (except officers and sailors of or belonging to ships lying in the port passing to and from such ships) landing at or embarking from any quay belonging to the Board.

Passenger tolls
to be payable
in respect of
quays &c.

14. All dues rates tolls and charges payable under this Part of this Act shall be paid to the Board or to such person as the Board may from time to time appoint to receive the same.

As to
payment of
dues &c.

15.—(1) If it is represented by application in writing to the Minister—

Revision of
rates.

- (a) by any chamber of commerce or shipping or any representative body of traders or shipowners; or
- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the port and is a proper person to make an application; or
- (c) by the Board;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

PART II
—cont.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section an order has been made or the Minister has decided not to make an order no further application for a revision of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with such bodies or persons as aforesaid as appear to him to be appropriate including the Board where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Board or by any such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the Board being insufficient or more than sufficient to enable the Board with efficient management of their undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of their undertaking including interest on loan capital (regard being had by him to any capital which the Board may reasonably be expected to expend) making good depreciation providing for any contributions which the Board may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking of the Board taking into account their financial condition during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Board being insufficient to enable the Board to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The authorised rates as revised by an order under subsection (1) of this section shall not in any case be less than the maximum rates which the Board were authorised to levy demand and recover under or by virtue of the Southampton Harbour Acts 1863 to 1939.

(7) The provisions of section 50 (Inquiries by Minister) of this Act shall apply to inquiries which the Minister may cause to be held under this section.

(8) The power of the Minister to make an order under this section shall be exercisable by statutory instrument.

(9) In this section "authorised rates" means the dues rates tolls and charges which the Board are for the time being authorised to levy demand and recover in pursuance of the Southampton Harbour Acts 1863 to 1949 or any order made under this section.

16. Nothing in this Act shall prejudice or take away any rights estates powers advantages or privileges of the mayor aldermen and burgesses of the borough of Southampton under the existing Acts and such Acts shall have effect as if— Saving rights of Southampton Corporation.

(a) the harbour tonnage dues set forth in the First Schedule to this Act had been substituted for the tonnage dues set forth in Schedule B to the Southampton Harbour Act 1924; and

(b) the rates on goods set forth in the Third Schedule to this Act had been substituted for the rates on goods set forth in Schedule C to the Southampton Harbour Act 1887.

PART III

FINANCE

17.—(1) In addition to the sums which the Board are by the existing Acts authorised to borrow (whether on mortgage or by the creation and issue of Southampton Harbour redeemable stock or otherwise) they may from time to time (subject to the provisions of this Part of this Act) borrow on the security of their undertaking in manner hereinafter provided— Power to borrow.

(a) any sums not exceeding in the aggregate one million two hundred and fifty thousand pounds;

(b) with the consent of the Minister such further sums as may from time to time be required for the purposes of their undertaking.

(2) All money raised by the Board under the authority of this section shall be applied to the general purposes of the Board and their undertaking being in all cases purposes to which capital is properly applicable.

PART III
—cont.Power to create
and issue
stock.

18.—(1) Subject to the provisions of this Part of this Act the Board may from time to time for the purpose of—

- (a) raising any money which they are authorised to borrow by section 17 (Power to borrow) of this Act;
- (b) redeeming any stock created and issued under this section;

create and issue by public tender or otherwise redeemable stock to the amount required for those purposes or either of them.

(2) All or any such stock may be issued at such prices at such times and on and subject to such terms and conditions and bearing such rates of interest as the Board shall by resolution determine.

(3) All stock created and issued under this section and the interest thereon shall be a charge on the undertaking of the Board.

(4) All stock created and issued under this section shall be redeemable by the Board at par (namely at the rate of one hundred pounds sterling for every nominal amount of one hundred pounds stock) and at such time and in such manner as the Board may by the resolution for the creation of any portion of the stock declare with reference to that portion:

Provided that—

- (a) every portion of stock so created and issued shall be redeemed by the Board within sixty years from the date of the issue of such portion of stock; and
- (b) nothing in this section shall prevent the Board prior to the date of redemption from redeeming any stock at par or at a price above or below par by agreement with the holder of such stock.

Expenses of
issue of stock.

19. The Board in the exercise of their powers under this Part of this Act of borrowing and of redeeming any stock created and issued under this Part of this Act may create and issue stock for the purpose of defraying the expenses of the creation and issue of any stock under this Part of this Act and shall provide for the redemption of any stock created and issued in pursuance of this section within the period for the redemption of the stock in respect of which the said expenses are incurred.

Saving for
powers of
Treasury.

20. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses referred to in section 53 (Costs of Act) of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

21.—(1) All stock at any time and from time to time created and issued under the existing Acts and this Part of this Act shall rank *pari passu* without respect to the dates of the securities or the Acts of Parliament or resolutions by which such stock was authorised and without any preference or priority on any ground whatsoever.

PART III
—cont.

Stock and
interest to rank
pari passu.

(2) The interest on all such stock as aforesaid shall also rank *pari passu*.

(3) Notice of the effect of this enactment shall be endorsed on all certificates of stock granted or issued after the passing of this Act.

(4) (a) Section 17 (Stock created under this Act to rank *pari passu*) of the Southampton Harbour Act 1903 is hereby repealed and section 8 (Incorporating certain provisions of the Act of 1903) of the Southampton Harbour Act 1911 shall be read and construed accordingly.

3 Edw. 7.
c. xci.

(b) Section 19 (Ranking of additional stock) of the Southampton Harbour Act 1924 is hereby repealed.

22. The interest on the stock created and issued under this Part of this Act shall be payable half-yearly on such dates as the Board shall by resolution determine or if any of such dates fall on a Sunday or a day observed as a public holiday at the Bank of England then on the following day and shall be paid either at the bankers of the Board or in accordance with the provisions of section 37 (Interest orders and dividend warrants by post) of this Act.

Interest on
stock.

23.—(1) For the payment of interest on the several classes of stock created and issued under this Part of this Act there shall in each year be carried to accounts of the Board entitled “stock (interest) fund accounts” a sum or sums equal to the aggregate amount of all interest payable during the year on such classes of stock.

Maintenance
and use of
stock
(interest) fund
accounts.

(2) The Board shall keep a separate stock (interest) fund account distinguished by a number or otherwise for each class of stock so created and issued and each such account is hereinafter in this Part of this Act referred to as the “stock (interest) fund account”.

(3) The Board shall from time to time pay the interest on the stock created and issued as aforesaid and charge the same to the appropriate stock (interest) fund account.

24. Unpaid interest on stock created and issued under this Part of this Act shall not in any circumstances bear interest against the Board.

No interest on
unpaid interest.

PART III

—cont.

Unclaimed
interest.

25.—(1) If at any time any interest on any stock created and issued under this Part of this Act is unclaimed at the time for payment thereof the same shall nevertheless on demand at any subsequent time whatsoever be paid to the person showing his right thereto but without interest in the meantime.

(2) Where any interest remains unclaimed for one year from the time for payment thereof the Board shall cause notice thereof to be sent by post in a registered letter addressed to the holder of stock named in the stock register by the description and at the address therein appearing and so at the expiration of each of the next three successive years if the same still remains unclaimed.

(3) At the end of every successive period of five years from the day when the first interest becomes payable on any stock as aforesaid but remains unclaimed the Board shall publish an advertisement in newspapers circulating in the county of London and in the borough of Southampton stating what if any interest on any such stock has then been unclaimed for more than four years and the names and addresses appearing in the stock register of the persons entitled to such interest when the same became due.

(4) When any interest on any such stock has been unclaimed for six years and upwards the Board may transfer the amount thereof from the stock (interest) fund account in which it stands to the credit of their revenue account or of any other account that the Board may think fit or may otherwise deal with and apply the same for the purposes of the Board and that whether with or without making any provision for the payment of the said interest if and when claimed:

Provided always that any such transfer dealing or application shall be without prejudice to the rights of any person entitled to such interest to recover the same from the Board.

Unclaimed
stock.

26.—(1) If at the end of a period of ten years after the date at which the Board having power to redeem any stock created and issued under this Part of this Act decide to redeem it the Board by reason of the holder of any such stock not being forthcoming or by reason of any doubt as to the ownership of any such stock shall not be able to redeem the stock the Board shall invest in statutory securities a sum equal to the nominal value of all such stock as cannot be redeemed by reason as aforesaid and thereupon such stock shall be deemed to have been extinguished.

(2) Any sums invested by the Board as aforesaid shall unless sold for the purpose of satisfying any claim in respect of the stock represented by the same be kept invested in statutory securities for a further period of ten years after which time the

Board may appropriate the said sums and any accumulations thereof for such purposes as the Minister approves without prejudice nevertheless to the rights of any persons to the said sums or any part thereof.

PART III
—cont.

27. The Board may by resolution revoke at any time in whole or in part any resolution for creation of stock theretofore passed by the Board if and so far as the same has not been acted on by the issue of stock thereunder and notice of any such revocation shall forthwith be given to the Minister.

Saving for
power of
revocation.

28. The powers of the Board of raising money by the creation and issue of Southampton Harbour redeemable stock granted by the Southampton Harbour Act 1911 and the Southampton Harbour Act 1924 and remaining unexercised at the passing of this Act are hereby repealed.

As to
unexercised
capital powers.

29. The Board shall on such terms and subject to such conditions and instructions (not inconsistent with the provisions of this Part of this Act) as they think expedient appoint and keep appointed an officer of the Board or any other person or any banking or other company as registrar (hereinafter in this Part of this Act referred to as "the registrar") for all or any of the purposes of this Part of this Act.

Appointment
of registrar.

30.—(1) The registrar shall keep a book or books to be called "the stock register" in which shall be entered the names and addresses of the holders from time to time of the stock created and issued under this Part of this Act and the amounts held by them.

Register of
stock.

(2) No notice of any trust express implied or constructive shall be entered in the stock register or in any other book kept by the registrar or be receivable by or in any way affect the Board.

(3) The stock register shall be prima facie evidence of all matters entered therein in accordance with this Act and of the title of the persons entered therein as holders of stock.

(4) The stock register shall be open at all reasonable hours to inspection without payment by any holder of the stock created and issued under this Part of this Act or by any person duly authorised in writing by such holder for that purpose.

31.—(1) A certificate of the stock created and issued under this Part of this Act may be in the Form A set out in the Fifth Schedule to this Act or to the like effect and shall be prima facie evidence of the title of the person therein named his executors administrators successors or assigns to the stock therein specified but the want of a stock certificate if such want

Certificates
of stock.

PART III
—cont.

be accounted for to the satisfaction of the Board shall not prevent the holder of such stock from disposing of and transferring the same.

(2) If a stock certificate is worn out or damaged the same may on the production thereof be cancelled and a similar certificate may be issued to the holder of the stock therein specified or if a stock certificate is lost or destroyed then on proof thereof to the satisfaction of the Board and on such guarantee or indemnity being given in respect thereof as they may require a similar certificate may be issued to the holder of the stock specified in the certificate so lost or destroyed and in either case a due entry of the issue of the substituted certificate shall be made in the stock register.

(3) For every stock certificate issued in pursuance of this Part of this Act a fee not exceeding five shillings may be charged by the Board.

Mode of
transfer of
stock.

32.—(1) The stock created and issued under this Part of this Act shall be transferable in amounts of one pound or of multiples of one pound by deed which may be in the Form B set out in the Fifth Schedule to this Act or to the like effect but the Board shall not be bound to register a memorial of any transfer except on production of the certificate relating to the stock to be transferred or on its absence being accounted for to their satisfaction.

(2) The deed of transfer when duly executed shall be delivered to and kept by the Board who shall enter a memorial thereof in a book to be called "the register of transfers" and shall indorse on the deed of transfer a notice of such entry and for every such entry a fee not exceeding five shillings may be charged by the Board.

(3) The Board shall on demand and on delivery up of the old stock certificate or on its absence being accounted for to their satisfaction and on such guarantee or indemnity being given in respect thereof as they may require issue to the transferee a new stock certificate and in the case of any subdivision of stock issue to the transferee new stock certificates for the sums of stock so transferred or shall at the option of the transferee (in any case where the stock is not subdivided) make an indorsement of the transfer on the old stock certificate which indorsement being signed by direction of the Board shall be equivalent to a new stock certificate.

(4) Until the deed of transfer has been so delivered to the Board they shall not be affected thereby and the purchaser of the stock shall not be entitled to receive any interest thereon.

Form of
transfer.

33. Not more than one class of stock shall be included in any transfer.

34. The Board may in any year close the register of transfers of the stock created and issued under this Part of this Act for a period not exceeding fourteen days immediately preceding the respective dates prescribed by the Board under section 22 (Interest on stock) of this Act and notwithstanding the receipt by the Board during those periods of any deed of transfer any interest next payable in respect of such stock as aforesaid may be paid to the person registered as the holder of such stock on the date of the closing of the register of transfers.

Closing of
register of
transfers.

35.—(1) The executors or administrators of a deceased holder of stock created and issued under this Part of this Act shall be the only persons recognised by the Board as having any title to the stock of such holder or any interest therein.

Transmission
of stock on
death
bankruptcy
&c.

(2) The Board shall not be required to allow any executors or administrators to transfer any of such stock until there has been produced to the Board for registration a document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person and the Board may require all the executors who have proved the will or all the administrators to join in the transfer.

(3) Every person becoming entitled to any of such stock in consequence of the bankruptcy of the holder or otherwise than by death of the holder or transfer of the stock shall produce such evidence of his title as may be reasonably required by the Board and until such evidence has been produced the Board shall not be affected by the transmission and no person claiming by virtue thereof shall be entitled to receive any interest on the stock.

(4) The name of the person entitled under such transmission shall be entered in the stock register.

(5) Subsections (3) and (4) of this section shall apply to an apparent transmission of stock in consequence of the change of name of the holder thereof although the actual ownership of the stock may remain unaltered.

(6) The Board may charge a fee not exceeding five shillings for every entry made in the stock register under the provisions of this section.

36. The Board shall not be bound to see to the execution of any trust whether express or implied or constructive to which any of the stock created and issued under this Part of this Act may be subject and the receipt of the party in whose name any such stock stands in the stock register or of the legal personal representatives of such party shall from time to time be a sufficient discharge to the Board for any money payable in respect of such stock notwithstanding any trust to which it may

Board not
bound to
regard trusts.

PART III
—cont.Interest orders
and dividend
warrants by
post.

then be subject and whether or not the Board have had notice of such trust and the Board shall not be bound to see to the application of the money paid upon such receipt.

37.—(1) The Board may give notice in writing to any person being registered as a holder of any security of the Board that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Board of such objection the Board may from time to time send letters containing orders for the payment of interest or dividend warrants to the address of such person appearing in any stock register of the Board:

Provided that if such person gives notice to the Board that he desires such orders or warrants to be sent to another person at a given address the Board may from time to time send letters containing the same to such other person at such address:

Provided also that an order for the payment of interest or a dividend warrant may only be sent by the Board under the powers of this subsection to an address in Great Britain Northern Ireland the Isle of Man or the Channel Islands.

(2) Where two or more persons are registered as joint holders of any security of the Board any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Board by any other of them.

(3) The posting by the Board of a letter containing an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Board be equivalent to the delivery of the order or warrant to the registered holder of the security of the Board.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Board shall in relation thereto be deemed a banker within the meaning of that expression in the Bills of Exchange Act 1882.

45 & 46 Vict.
c. 61.Interest to
joint holders.

38. Where two or more persons are registered as joint holders of stock created and issued under this Part of this Act any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Board by any other of them.

Stock
redemption
fund
accounts.

39.—(1) The Board shall from time to time at yearly half-yearly or other intervals appropriate out of income to accounts of the Board entitled "stock redemption fund accounts" such sums as (with accumulations thereof) will be sufficient to pay off within sixty years from the date of borrowing all money raised by them by the creation and issue of stock under this Part of this Act:

Provided that it shall not be obligatory on them to make any appropriation under this section until after the expiration of ten years from the date of borrowing.

PART III
—cont.

(2) The Board shall keep a separate stock redemption fund account distinguished by a number or otherwise for each class of stock created and issued under this Part of this Act and each such account is hereinafter in this Part of this Act referred to as the "stock redemption fund account".

40.—(1) If it appears to the Minister at any time that the amount standing to the credit of the stock redemption fund account in respect of any stock created and issued under this Part of this Act with the future annual sums to be carried to the account in respect of such stock will probably not be sufficient within the period prescribed for the redemption of such stock to make up a sum equal to the nominal amount of such stock the sums to be carried to the account shall be increased annually or otherwise to such extent as the Minister may require.

Provisions for
adjustment
of stock
redemption
fund
accounts.

(2) If it appears to the Minister at any time that the amount standing to the credit of the stock redemption fund account in respect of any stock created and issued under this Part of this Act with the future annual sums to be carried to the account in respect of such stock will probably be more than sufficient within the period prescribed for the redemption of such stock to make up a sum equal to the nominal amount of such stock the sums to be carried to the account may be reduced either temporarily or permanently to such extent as the Minister may allow.

(3) If at any time the total amount carried to the credit of the stock redemption fund account in respect of any stock created and issued under this Part of this Act is such that in the opinion of the Minister it will probably be sufficient with the accumulations thereof within the period prescribed for the redemption of such stock to make up the nominal amount of such stock the Board may for so long as the Minister may allow cease to carry any sums to the account in respect of that stock.

41.—(1) In any year where moneys which have been carried to the stock redemption fund account are applied in the redemption or purchase and extinction of stock created and issued under this Part of this Act at a rate exceeding one hundred pounds sterling for one hundred pounds stock the Board shall carry to the stock redemption fund account during the year in which the redemption is effected or the purchase is made an additional sum or sums equal in amount to the sum or sums paid in excess of the said rate for the redemption or purchase of such stock in that year.

Subsidiary
provisions as
to stock
redemption
fund
accounts.

PART III
—cont.

(2) When the Board redeem or purchase and extinguish such stock by the application of moneys which have been carried to the stock redemption fund account the stock so redeemed or purchased and extinguished shall be deemed to be stock created and issued under this Part of this Act and if in respect of more than one class of stock created and issued as aforesaid in such proportions as the Board with the approval of the Minister determine:

Provided that no larger amount of each class of stock created and issued under this Part of this Act shall be deemed to be redeemed or purchased and extinguished as aforesaid than the amount which according to the actual price of redemption or purchase could be redeemed or purchased with the moneys carried to the stock redemption fund account in respect of that class of stock.

Application of
sums standing
to credit of
stock
redemption
fund accounts.

42.—(1) The Board may from time to time apply the sums standing to the credit of the stock redemption fund account in redeeming stock created and issued under this Part of this Act according to the terms of issue or purchasing such stock for extinction or both but the annual sums to be carried to the stock redemption fund account shall not be affected by the said application and pending or in default of any such application of the said sums or of their application in the manner authorised by subsection (2) of this section the Board shall invest the said sums in statutory securities and the interest or annual proceeds arising from every such investment shall be carried to the general revenue account of the Board.

(2) Notwithstanding anything in subsection (1) of this section—

(a) Where the Board have any unexercised borrowing power for the creation and issue of stock under this Part of this Act the Board instead of exercising such borrowing power by the creation and issue of additional stock may with the approval of the Minister and subject as is hereinafter provided exercise such borrowing power either wholly or partially by using for the purpose any moneys for the time being standing to the credit of the stock redemption fund account and of any separate account forming part of the stock redemption fund account;

(b) Where the Board determine to proceed in the manner authorised by paragraph (a) of this subsection the Board shall pass a resolution approved by the Minister to that effect and shall by the resolution prescribe all such matters or things as in or in pursuance of this

subsection are referred to as prescribed or are required to be prescribed and after passing the resolution the Board shall—

PART III
—cont.

(i) withdraw from the moneys standing to the credit of the stock redemption fund account the prescribed sum which shall be equal to the amount of the borrowing power proposed to be exercised and such sum shall be deemed to be withdrawn from such separate account or separate accounts of the stock redemption fund account as shall be prescribed; and

(ii) deduct from the amount of stock for the time being chargeable to the purpose or attributable to the exercise of the borrowing power to which a separate account prescribed as aforesaid has reference a portion of stock at par value equal to the sum withdrawn from that separate account and transfer that portion of stock as from the prescribed date to the separate account in respect of which the borrowing power is exercised under this section.

(3) The provisions of this Part of this Act shall apply—

(a) to the moneys withdrawn from the stock redemption fund account and used in pursuance of subsection (2) of this section as though the moneys so withdrawn had been applied in the redemption of stock at par on the separate account or separate accounts from which the moneys were withdrawn and as though the moneys so used had been raised by the issue of additional stock for the purposes of the separate account in respect of which the borrowing power is exercised under subsection (2) of this section; and

(b) to the stock deducted and transferred in pursuance of subsection (2) of this section as though the stock so deducted had in pursuance of the provisions of this Part of this Act been redeemed by the application of moneys carried to the stock redemption fund account on the separate account or separate accounts from which the stock was deducted but subject to the condition that the stock shall not be cancelled and as though the stock so transferred were additional stock expressly issued for the purposes of the separate account in respect of which the borrowing power is exercised under subsection (2) of this section.

43. The Board on redeeming or purchasing any stock created and issued under this Part of this Act shall forthwith pass a resolution directing the stock so redeemed or purchased to be

Extinction of
stock
redeemed or
purchased.

PART III
—cont.Payment off
of stock.

cancelled by the registrar and on such cancellation the same and all interest thereon which has not already become payable shall be extinguished.

44. When the Board in the exercise of the powers of this Act create and issue stock under section 18 (Power to create and issue stock) of this Act for the purpose of redeeming stock created and issued under the said section the Board shall forthwith transfer to the stock redemption fund account such sum (if any) as may be necessary to make the money so paid equivalent to the amount which should have been in the stock redemption fund account or should have been paid off in respect of the stock for the redemption of which the new stock is created and issued and the Board shall cause all money standing to the credit of any stock redemption fund account in respect of the stock to be redeemed to stand in the proper stock redemption fund account to the credit of the separate account in respect of the stock newly created and issued.

Annual return
to Minister.

45.—(1) The clerk shall within twenty-one days after the expiration of each financial year send to the Minister an abstract of the stock redemption fund account and the stock redemption fund banking account in a form prescribed by the Minister.

The abstract shall be made up to and including the last preceding thirty-first day of December and shall be verified by a statutory declaration of an officer of the Board if and as may be required by the Minister.

(2) If by any such abstract or otherwise it appears to the Minister that the Board have failed to comply with any provision of this Act with reference to the stock redemption fund account or of any order of the Minister under this subsection in relation to any payment application or investment or otherwise in relation to the stock redemption fund account or the moneys held in the stock redemption fund account the Minister may by order require the Board to make good the default within a time therein limited and if the default be in respect of any sum to be paid into the stock redemption fund account or the mis-application of any money paid into or held in the stock redemption fund account the Minister may by order direct that the sum in that order mentioned not exceeding the amount of the sum of money in respect of which default has been made shall be paid by the Board out of their revenue into the stock redemption fund account or the stock redemption fund banking account (as the circumstances may require) and be applied or invested in like manner as required by this Act in regard to other sums paid into the stock redemption fund account or other moneys held in the stock redemption fund account.

Board may
raise
temporary
loans.

46.—(1) The Board may borrow or raise money for the purposes of meeting their obligations and carrying out their duties under the Southampton Harbour Acts 1863 to 1949 on temporary loans by means of overdrafts from bankers or otherwise:

Provided that the aggregate amount outstanding at any time of the money so borrowed or raised shall not exceed two hundred and fifty thousand pounds.

PART III
—cont.

(2) The power conferred by this section shall be in addition to any power for the time being of the Board to borrow on mortgage or to raise money by the creation and issue of stock.

47. The Board may and if required by the Minister shall from time to time invest temporarily in statutory securities any sum raised by stock created and issued under this Part of this Act and not for the time being required for the purpose for which it was raised. Temporary investments.

PART IV

MISCELLANEOUS

48.—(1) In this section “the signed plan” means the plan of which copies have been signed in quadruplicate by Francis George Bowles the chairman of the committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited at the office of the Clerk of the Parliaments one in the Private Bill Office of the House of Commons one at the office of the Ministry of Transport and one at the principal office of the Board. Lines for works on rivers Itchen and Hamble.

(2) From and after the passing of this Act it shall not be lawful without the consent in writing of the Board signed by the clerk to construct erect bring forward or retain any quay wall or other work or any part of any such work on the bed or either bank or shore of the river Itchen or the river Hamble in advance of or on the riverward side of any of the lines coloured red on the signed plan.

(3) If the Board shall withhold their consent under the foregoing provisions of this section for two months from the time when the application for such consent shall have been first submitted to them or when granting their consent shall impose any conditions the person who shall have applied for such consent shall be entitled to appeal to the Minister upon giving notice thereof and of his reasons therefor in writing to the Board within one month after the period of two months referred to or after the Board have given to him notice of their intention to impose conditions and the Minister after giving to such person and to the Board an opportunity of being heard may make such order as in his opinion the circumstances require.

(4) Any person who shall contravene any provisions of this section shall (without prejudice to any other proceedings to which such person may be liable in respect of the matter complained of) be liable on summary conviction to a penalty not

PART IV
—cont.

exceeding twenty pounds and to a penalty of five pounds for every day on which such contravention shall continue after conviction therefor.

(5) In any case in which a person has been convicted for any offence against the provisions of this section the Board may remove the quay wall or other work (any of which works are hereinafter in this section included in the expression "the structure") in respect of which such person has been convicted and may recover from the owner thereof all expenses of and incidental to such removal.

(6) The Board may if they think fit so to do sell the materials of the structure so removed and if the proceeds of such sale are insufficient to reimburse the expenses incurred by the Board in and incidental to such removal the Board may recover the deficiency from the owner of the structure but if such proceeds are more than sufficient to reimburse such expenses the Board shall pay the surplus of such proceeds to the owner of the structure.

(7) All expenses or any deficiency which may be recovered under this section may be recovered as a debt in any court of competent jurisdiction.

(8) Nothing in this section shall apply to any structure—

(a) existing at the passing of this Act ; or

(b) authorised by Act of Parliament or any Provisional Order confirmed by Act of Parliament ; or

(c) constructed in pursuance of any consents or approvals in writing given by the Minister and the Board before the passing of this Act.

(9) A copy of the signed plan certified by the clerk to be correct shall be accepted in all proceedings as evidence of the contents of the signed plan.

(10) For the purposes of this section the expression "quay" includes any wharf pier pontoon or landing-place.

(11) Section 55 (Plan of river Itchen with a line marked thereon within which quays and embankments may be made by adjoining owners to be deposited with clerks of the peace for Southampton and Hants) section 56 (After deposit of plans owners may embank within such line) section 57 (Copies of plans to be evidence) and section 58 (Works to be approved of by the Admiralty before commenced) of the Act 6 & 7 Vict. c. LXV are hereby repealed and Schedule (F) to the Southampton Docks Act 1871 shall be read and construed accordingly.

34 & 35 Vict.
c. cxxx.

Evidence of
appointments
authority &c.

49. Any certificate of appointment or authority of any officer servant solicitor or agent of the Board or of any committee thereof or any minute resolution order or report of the Board

or any committee thereof purporting to be authenticated by the signature of the chairman of the Board or of the clerk shall be received as prima facie evidence thereof without further proof.

PART IV
—cont.—

50. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of any consents or approval or the making of any order under this Act and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Board were a local authority.

Inquiries by
Minister.

23 & 24 Geo. 5.
c. 51.

51. The amendments sets forth in the second column of the Sixth Schedule to this Act shall be made in the provisions of the Southampton Harbour Acts 1863 1887 1891 1900 1903 1911 1913 and 1924 set forth in the first column of that schedule.

Amendments
of Acts of
1863 1887
1891 1900
1903 1911
1913 and 1924.

52. The following enactments are hereby repealed:—

Repeal.

The Southampton Harbour Act 1863—

- Section 32 (Tonnage dues);
- Section 33 (Exemptions from tonnage dues);
- Section 34 (Rates on goods);
- Section 36 (Pier tolls);
- Section 37 (Restriction as to reduction of pier tolls);
- Section 38 (Vessels to call at pier to land and embark passengers on and from pier);
- Section 47 (Power to let rates and tolls);
- Schedules (B) (C) and (E):

Southampton Harbour Act 1882—

- Section 17 (Dues for lighthouses &c.);
- Section 18 (Power to compound for light dues);
- Section 20 (Boomage dues to be only payable once a day);
- Section 21 (Passenger tolls to be payable in respect of quays &c.);
- Schedule A:

Southampton Harbour Act 1887—

- Section 6 (Alteration of tonnage and boomage duties);
- Section 7 (Exemption from tonnage dues);
- Section 8 (Alteration of rates on goods);
- Section 10 (Amending section 21 of Act of 1882);
- Schedules (B) and (C):

PART IV

—cont.

54 & 55 Vict.
c. xcv.

Southampton Harbour Act 1891—

Section 19 (Tolls) ;

The schedule :

Southampton Harbour Act 1903—

Section 24 (Dividend warrants by post) ;

Section 25 (Effect of posting a warrant) :

Southampton Harbour Act 1911—

Section 5 (Reduction of dues in certain cases) :

Southampton Harbour Act 1924—

Section 6 (Rates on goods discharged into and from
lighters &c.) ;

Section 7 (Alteration of light dues) ;

Section 8 (Alteration of tonnage dues) ;

Section 9 (Tolls on craft using but not entering
port) ;

The schedules.

Costs of Act.

53. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board.

The SCHEDULES referred to in the foregoing Act

FIRST SCHEDULE

HARBOUR TONNAGE DUES

	Per register ton
Class 1.	
For every ship coming into the port from or going out of the port for any port in Great Britain Northern Ireland Eire the Isle of Man or the Channel Islands	5d.
Class 2.	
For every ship coming into the port from or going out of the port for any European port between the North Cape and Cape St. Vincent excluding ports within the Baltic Sea	7d.
Class 3.	
For every ship coming into the port from or going out of the port for any port other than a port referred to in class 1 or class 2 hereof	8d.

Composition for harbour tonnage dues—

Home-trade ships (as defined in section 742 of the Merchant Shipping Act 1894) to be allowed to compound on a basis of fifty voyages in a year to or from the port Any such composition shall be paid in advance.

56 & 57 Vict.
c. 60.

SECOND SCHEDULE

QUAY AND PIER TONNAGE DUES

A tonnage due on any ship lying alongside or using any quay or pier belonging to the Board of sixpence per net register ton for the first seven days or part thereof For each subsequent seven days or part thereof one-quarter of such tonnage due.

Composition for quay and pier tonnage dues—

Home-trade ships (as defined in section 742 of the Merchant Shipping Act 1894) to be allowed to compound on such terms as the Board may prescribe Any such composition shall be paid in advance.

THIRD SCHEDULE

RATES ON GOODS

Description	Per	s.	d.
Acids	Ton	6	0
Aerated waters	Doz.		3
Agricultural implements	Ton	6	0
Ale beer and porter	Hhd		8
Almonds	Ton	6	0
Alum	Ton	3	0
Anchors	Ton	4	9
Animals live—			
Horses	Each	2	6
Oxen and cows	Each	1	3
Calves	Each		8
Sheep and lambs	Score	2	6
Pigs	Score	3	9
Arrowroot	Ton	6	0
Asbestos	Ton	6	0
Ashes	Ton	3	0
Asphalt	Ton	3	0
Bacon	Ton	4	9
Baggage	Ton	7	6
Bags and sacks empty	Ton	4	9
Ballast	Ton		8
Bark	Ton	4	9
Extract	Ton	6	0
Barrels hampers and boxes new and empty	Ton	6	0
Basic slag	Ton	3	0
Beet pulp	Ton	1	6
Benzol	Ton	6	0
Bicycles in cases	Cwt.		3½
Bicycles motor in cases	Cwt.		7
Biscuits	Ton	3	0
Blacking and blacklead	Ton	6	0
Boats—			
Rowing	Each	5	0
Motor steam and sailing	Ton	10	0
Ships	Ton	10	0
Bog ore	Ton	1	6
Bones and bonemeal	Ton	3	0
Boots	Ton	6	0
Borax	Ton	6	0
Bottles glass	Ton	4	9
Bran	Ton	1	0
Brass and brass manufactures	Ton	6	0
Scrap	Ton	4	0
Brewers' grains	Ton	2	0
Bricks	1,000	2	6
Brimstone	Ton	6	0
Bristles	Ton	3	0
Brushes	Ton	6	0
Butter	Ton	6	0

Description	Per	s.	d.
Cable—			
Chain	Ton	4	0
Electric	Ton	6	0
Candles	Ton	4	9
Canvas	Ton	6	0
Carbon	Ton	4	0
Cement	Ton	3	0
Chalk	Ton	1	6
Charcoal	Ton	4	0
Cheese	Ton	6	0
China clay	Ton	3	0
Cider	Hhd		8
Bottled	Doz.		3
Coal	Ton	1	3
Cocoa	Ton	6	0
Coffee and coffee essence	Ton	6	0
Coke	Ton	2	6
Confectionery	Ton	6	0
Contractors' plant	Ton	6	0
Copper	Ton	6	0
Scrap	Ton	6	0
Cordage	Ton	4	0
Cordials	Ton	4	0
Cork	Doz.		3
Manufactures	Ton	4	9
Corn see Grain	Ton	6	0
Cotton manufactures	Ton	6	0
Creosote	Ton	6	0
Currants	Ton	3	0
Dates	Ton	6	0
Drapery	Ton	6	0
Drugs	Ton	6	0
Dyes	Ton	6	0
Earthenware	Ton	6	0
Eggs	Ton	4	9
Electric plant and machinery	Ton	6	0
Empties returned	Ton	6	0
Feathers	Each		3
Felt roofing	Ton	6	0
Figs	Ton	3	0
Fire clay and fire bricks	Ton	6	0
Fireworks	Ton	3	0
Fish—	Ton	6	0
Dried	Ton	3	0
Canned	Ton	6	0
Sprats	Bushel		3
All other kinds	Ton	3	0
Flax	Ton	3	0
Flour	Ton	3	0
Food patent human	Ton	2	3
Fruit—	Ton	6	0
Apples lemons oranges pears and plums	Ton	6	0
Fuel patent	Ton	2	6
Furniture	Ton	6	0

3RD SCH.
—cont.

Description							Per	s.	d.
Gas in tubes and cylinders	...	...	...	...	...	...	Ton	6	0
Ginger	...	...	...	...	...	...	Ton	6	0
Glass	...	...	...	...	...	...	Ton	6	0
Glucose	...	...	...	...	...	...	Ton	4	0
Glue and glue film	...	...	...	...	...	...	Ton	4	9
Grain	...	...	...	...	...	...	Ton	1	6
Grain offals	...	...	...	...	...	...	Ton	1	0
Grease	...	...	...	...	...	...	Ton	3	0
Grit	...	...	...	...	...	...	Ton	3	0
Gum	...	...	...	...	...	...	Ton	6	0
Gunpowder	...	...	...	...	...	...	Ton	6	0
Gypsum	...	...	...	...	...	...	Ton	3	0
Haberdashery	...	...	...	...	...	...	Ton	6	0
Hair horse and cow	...	...	...	...	...	...	Ton	6	0
Hams	...	...	...	...	...	...	Ton	4	9
Hardware	...	...	...	...	...	...	Ton	6	0
Hay	...	...	...	...	...	...	Ton	3	0
Hemp	...	...	...	...	...	...	Ton	4	9
Hessian	...	...	...	...	...	...	Ton	4	9
Hides	...	...	...	...	...	...	Ton	6	0
Hoops	...	...	...	...	...	...	Ton	4	0
Hops	...	...	...	...	...	...	Ton	4	9
Hosiery	...	...	...	...	...	...	Ton	6	0
Hurdles	...	...	...	...	...	...	Ton	3	0
Ice	...	...	...	...	...	...	Ton	2	0
India rubber—									
Manufactures	...	...	...	...	...	...	Ton	6	0
Raw	...	...	...	...	...	...	Ton	4	0
Scrap	...	...	...	...	...	...	Ton	3	0
Iron and Steel—									
Galvanized	...	...	...	...	...	...	Ton	3	0
Ore	...	...	...	...	...	...	Ton	1	6
Angles bars rods plates sheets rivets bolts pig kentledge and scrap	...	...	...	...	...	...	Ton	3	0
Chains and railway metals	...	...	...	...	...	...	Ton	4	0
Anchors wire and wire rope	...	...	...	...	...	...	Ton	4	9
Pipes	...	...	...	...	...	...	Ton	6	0
Manufactures unenumerated	...	...	...	...	...	...	Ton	6	0
Jute and jute yarn	...	...	...	...	...	...	Ton	4	9
Joinery	...	...	...	...	...	...	Ton	6	0
Kainit	...	...	...	...	...	...	Ton	3	0
Kelp	...	...	...	...	...	...	Ton	4	9
Lampblack	...	...	...	...	...	...	Ton	4	9
Lead—									
Shot	...	...	...	...	...	...	Ton	4	9
Pig sheet and pipe	...	...	...	...	...	...	Ton	3	0
Scrap	...	...	...	...	...	...	Ton	3	0
Leather	...	...	...	...	...	...	Ton	4	9
Manufactures	...	...	...	...	...	...	Ton	6	0
Lime	...	...	...	...	...	...	Ton	2	6
Chloride of	...	...	...	...	...	...	Ton	3	0

Description	Per	s. d.
Linen	Ton	6 0
Linoleum	Ton	6 0
Machinery	Ton	6 0
Maize flaked	Ton	3 0
Malt	Ton	1 6
Manure patent	Ton	3 0
Margarine	Ton	6 0
Matches	Ton	6 0
Mats—		
Door	Ton	6 0
Dunnage	Ton	3 0
Meal oat and maize	Ton	3 0
Meat fresh including frozen and chilled	Ton	4 9
Medicines	Ton	6 0
Milk condensed and dried	Ton	6 0
Mineral waters	Doz.	3
Moss litter	Ton	3 0
Musical instruments—		
Pianos	Each	4 0
American organs	Each	4 0
Unenumerated	Ton	6 0
Nails	Ton	6 0
Naphtha	Ton	6 0
Nuts	Ton	6 0
Oakum	Ton	4 9
Oatmeal and rolled or crushed oats... ..	Ton	3 0
Ochre	Ton	4 9
Oil—		
Sperm seal and blubber	Ton	4 9
Unenumerated	Ton	6 0
Oilcake and cattle foods	Ton	3 0
Oyster shells	Ton	3 0
Paint and painters' colours	Ton	4 9
Paper	Ton	4 9
Pearl barley	Ton	3 0
Pipeclay	Ton	3 0
Pitch	Ton	3 0
Plants and shrubs	Ton	6 0
Plaster	Ton	3 0
Plaster of Paris	Ton	4 9
Plaster boards	Ton	4 0
Poultry and game	Ton	6 0
Preserves	Ton	6 0
Provisions unenumerated	Ton	6 0
Putty	Ton	3 0
Pyrites	Ton	1 6
Petroleum—		
Crude kerosene and paraffin	Ton	3 0
Petrol	Ton	6 0
Gas oil	Ton	3 0
Lubricating	Ton	4 9

3RD SCH.
—cont.

3RD SCH.
—cont.

Description								Per	s.	d.
Rags	...	...	...	...	...	...	...	Ton	4	9
Raisins	...	...	...	...	...	...	...	Ton	6	0
Red lead	...	...	...	...	...	...	...	Ton	4	9
Resin	...	...	...	...	...	...	...	Ton	4	9
Retorts clay	...	...	...	...	...	...	...	Ton	3	0
Rice	...	...	...	...	...	...	...	Ton	4	9
Rope—										
Hemp and manilla	...	...	...	...	...	...	...	Ton	4	0
Wire	...	...	...	...	...	...	...	Ton	4	9
Scrap	...	...	...	...	...	...	...	Ton	3	0
Sacks empty	...	...	...	...	...	...	...	Ton	4	9
Sago	...	...	...	...	...	...	...	Ton	6	0
Salt	...	...	...	...	...	...	...	Ton	2	0
Saltpetre	...	...	...	...	...	...	...	Ton	4	9
Sand	...	...	...	...	...	...	...	Ton		8
Seaweed	...	...	...	...	...	...	...	Ton	4	9
Seeds—										
Oil	...	...	...	...	...	...	...	Ton	3	0
Unenumerated	...	...	...	...	...	...	...	Ton	4	0
Ships' stores	...	...	...	...	...	...	...	Ton	6	0
Silk manufactures	...	...	...	...	...	...	...	Ton	10	0
Skins undressed	...	...	...	...	...	...	...	Ton	6	0
Dressed	...	...	...	...	...	...	...	Ton	7	6
Slates	...	...	...	...	...	...	...	1,000	2	6
Soap	...	...	...	...	...	...	...	Ton	4	9
Soda—										
Washing	...	...	...	...	...	...	...	Ton	3	0
Bicarbonate of	...	...	...	...	...	...	...	Ton	3	0
Nitrate of	...	...	...	...	...	...	...	Ton	3	0
Spelter	...	...	...	...	...	...	...	Ton	6	0
Dross	...	...	...	...	...	...	...	Ton	3	0
Spirits and Wines—										
Not bottled	...	...	...	...	...	...	...	100 galls.	3	0
Bottled	...	...	...	...	...	...	...	Doz.		6
Methylated	...	...	...	...	...	...	...	Ton	6	0
Spirits of salt	...	...	...	...	...	...	...	Ton	6	0
Starch	...	...	...	...	...	...	...	Ton	4	9
Stationery	...	...	...	...	...	...	...	Ton	4	9
Stone—										
Block emery grave and marble	...	...	...	...	...	...	...	Ton	6	0
Millstones and china stone	...	...	...	...	...	...	...	Ton	3	0
Grindstones	...	...	...	...	...	...	...	Ton	2	0
Paving and tarred macadam	...	...	...	...	...	...	...	Ton	1	6
Broken granite and flints	...	...	...	...	...	...	...	Ton		10
Straw	...	...	...	...	...	...	...	Ton	3	0
Sugar—										
Raw	...	...	...	...	...	...	...	Ton	3	0
Refined	...	...	...	...	...	...	...	Ton	4	9
Syrup	...	...	...	...	...	...	...	Ton	3	0
Tallow	...	...	...	...	...	...	...	Ton	3	0
Tar	...	...	...	...	...	...	...	Ton	3	0
Tarpaulins	...	...	...	...	...	...	...	Ton	6	0
Tea	...	...	...	...	...	...	...	Ton	6	0
Tiles—										
Roofing	...	...	...	...	...	...	...	1,000	2	6
Paving	...	...	...	...	...	...	...	1,000	4	0

Description	Per	s. d.
Tinplates	Ton	4 9
Tinware	Ton	6 0
Tobacco	Ton	6 0
Treacle	Ton	3 0
Turpentine	Ton	3 0
Twine	Ton	4 9
Varnish	Ton	4 9
Vegetables—		
Onions	Ton	8 0
Potatoes	Ton	3 0
Tomatoes	Ton	6 0
Unenumerated	Ton	4 0
Vehicles—		
Agricultural motor tractors	Each	4 0
Traction engines and road rollers	Ton	6 0
Motor-cars and road motor vehicles—		
Up to 3 tons	Each	5 0
Over 3 tons	Each	6 0
Horsedrawn—		
4 Wheels	Each	5 0
2 Wheels	Each	3 0
Vinegar—		
Not bottled	Hhd.	8
Bottled	Doz.	3
Wax	Ton	3 0
Wearing apparel unenumerated	Ton	6 0
Whitelead	Ton	3 0
Whiting... ..	Ton	3 0
Wire—		
Iron	Ton	4 9
Brass and copper	Ton	6 0
Rope	Ton	4 9
Unenumerated	Ton	6 0
Wood—		
Mahogany boxwood cedar teak and cabinet	Ton	6 0
Elm oak fir and pine	Ton	2 0
Blocks for paving	Ton	2 0
Deals battens boards and ends	Ton	2 0
Plywood	Ton	4 0
Sleepers	Ton	2 0
Boxboards	Ton	4 0
Woodware	Ton	6 0
Wool	Ton	6 0
Woollen goods	Ton	6 0
Wallboards	Ton	4 0
Waterglass	Ton	3 0
Yarn jute and hemp	Ton	4 9
Zinc	Ton	6 0

3RD SCH.
—cont.

And so (in all cases) in proportion for any greater or less weight number measure or quantity but subject to a minimum charge of twopence.

And for any goods omitted to be inserted in the foregoing schedule the Board may charge rates equal to the rates specified in the said schedule for goods of a similar nature package quality or value or if quite dissimilar such rate as the Board shall direct not exceeding twopence for every six shillings and eightpence real or declared value of such goods.

FOURTH SCHEDULE

PIER TOLLS AND CHARGES

TOLLS ON PASSENGERS AND OTHERS

s. d.

For every passenger or other person who shall land on the pier or embark or go on board any ship from the pier for each and every time	4
For every person not landing on or embarking from the pier who shall use the pier for the purpose of walking exercise pleasure or otherwise for each and every time	4

TOLLS ON VEHICLES

For every four-wheel carriage light van or dray which shall be drawn on the pier not being landed thereon or embarked therefrom for each and every time	1	0
For every four-wheel carriage light van or dray which shall be landed thereon or embarked therefrom for each and every time	3	6
For every hand-truck sack truck barrow street organ or any such like vehicle or instrument which shall be drawn on the pier not being landed on or embarked therefrom for each and every time		6
For every hand-truck sack truck barrow street organ or any such like vehicle or instrument which shall be landed on or embarked therefrom for each and every time	1	6
For every bathchair or other such like vehicle which shall be drawn on the pier not being landed thereon or embarked therefrom for each and every time		6
For every bathchair or other such like vehicle which shall be landed thereon or embarked therefrom for each and every time	1	6
For every tricycle perambulator folding push-chair or other such like vehicle which shall be drawn on the pier not being landed thereon or embarked therefrom for each and every time		6
For every tricycle perambulator folding push-chair or other such like vehicle which shall be landed thereon or embarked therefrom for each and every time	1	0
For every bicycle or other such like vehicle which shall be landed on or embarked from the pier for each and every time	1	0
For every motor-bicycle or other such like vehicle which shall be landed on or embarked from the pier for each and every time	2	0
For every motor-tricycle motor-cycle combination or other such like vehicle which shall be landed on or embarked from the pier for each and every time	3	0

	s.	d.	4TH SCH. —cont.
For every motor-car motor-cycle combination or light trade van or other such like vehicle which shall be brought on the pier not being landed thereon or embarked therefrom for each and every time	1	6	
For every motor-car or light trade van or other such like vehicle which shall be landed on or embarked from the pier for each and every time	5	0	
For every trailer which shall be landed on or embarked from the pier for each and every time	3	0	
For every omnibus motor-coach lorry or other such like vehicle which shall be brought on the pier not being landed thereon or embarked therefrom for each and every time	3	6	
For every omnibus motor-coach lorry furniture van or other such like vehicle which shall be landed on or embarked from the pier for each and every time	12	0	
<i>The above tolls on vehicles shall not cover any goods or luggage contained therein.</i>			

TOLLS ON ANIMALS

For every horse mule or donkey that shall be landed on or embarked from the pier for each and every time ...	3	0
For every bull ox cow or heifer which shall be landed on or embarked therefrom for each and every time	1	0
For every calf which shall be landed on or embarked therefrom for each and every time		4
For every score of hogs or pigs which shall be landed on or embarked therefrom for each and every time	3	4
And for every number less than a score per head for each and every time		3
For every score of sheep lambs or goats which shall be landed on or embarked therefrom for each and every time	2	0
And for every number less than a score per head for each and every time		2
For every dog which shall be landed on or embarked therefrom for each and every time		4
For every wild and performing or other animal unenumerated if small which shall be landed on or embarked therefrom for each and every time	2	0
And if large for each and every time	5	0

TOLLS ON PASSENGERS' LUGGAGE

For every trunk portmanteau parcel or other package within the description of luggage that shall be landed or embarked or otherwise taken on or from or placed on the pier not exceeding the weight of twenty-eight pounds each	4
And for every twenty-eight pounds or fractional part thereof on any such package in addition	2

4TH SCH.
—cont.

But if the same shall be placed on a hand-truck or barrow
then for any quantity of luggage belonging to one person
and contained on any hand-truck or barrow and not
exceeding one hundredweight 1 0

And for every twenty-eight pounds weight or fractional part
thereof in addition 2

s. d.

TOLLS ON GOODS

The Board may charge for all goods or merchandise of
whatever description not falling under the denomination
of luggage that shall be landed or transhipped at or
deposited upon or shipped from or unshipped at the pier
any sums not exceeding the rates set forth in the Third
Schedule to this Act.

FIFTH SCHEDULE

FORM A

FORM OF CERTIFICATE OF STOCK
SOUTHAMPTON HARBOUR BOARD

Certificate No. £ Register No.

This is to certify that
of

is registered in the books of the Southampton Harbour Board as the
proprietor of pounds

of Southampton Harbour Board redeemable stock

to created and issued under the provisions of the
Southampton Harbour Act 1949 bearing interest at the rate of
£ per centum per annum payable half-yearly on
the day of and the day
of in each year.

Given under the common seal of the Southampton Harbour Board
this day of 19

NOTE.—This stock certificate must be deposited with the deed of
transfer whether for the whole or any portion thereof before a new
certificate can be issued in exchange.

All certificates will bear the common seal of the Board.

FORM B

FORM OF DEED OF TRANSFER

I
of
in consideration of the sum of
pounds paid to me by

of
(hereinafter called "the said transferee") do hereby transfer to the
said transferee the sum of pounds
of Southampton Harbour Board redeemable stock
to standing in my name in the register of such stock.

To hold to the said transferee his executors administrators and assigns [or successors and assigns] subject to the several conditions on which I hold the same at the time of the execution hereof.

5TH SCH.
—cont.

And I the said transferee do hereby agree to take the said stock subject to the same conditions.

As witness our hands and seals this day of 19 .

Signed sealed and delivered by the above-
named }
in the presence of—

Signature.....

Address.....

Occupation.....

Signed sealed and delivered by the above-
named }
in the presence of—

Signature.....

Address.....

Occupation.....

SIXTH SCHEDULE

AMENDMENTS OF THE SOUTHAMPTON HARBOUR ACTS 1863 1887 1891 1900 1903 1911 1913 AND 1924

PROVISION AMENDED

AMENDMENTS

THE SOUTHAMPTON HARBOUR ACT 1863

Section 39 (Power to compound
pier tolls).

The words "the Acts and Orders
from time to time relating to
the Board" shall be substi-
tuted for the words "this
Act".

THE SOUTHAMPTON HARBOUR ACT 1887

Section 11 (Board may charge
for services rendered not other-
wise provided for).

The words "Acts and Orders
from time to time relating to
the Board" shall be sub-
stituted for the words
"Southampton Harbour Acts
1863 to 1887".

SOUTHAMPTON HARBOUR ACT 1891

Section 17 (New quay to form
part of undertaking of Board).

The words "Acts and Orders
from time to time relating to
the Board" shall be sub-
stituted for the words
"Southampton Harbour Acts
1863 to 1891".

6TH SCH.

—cont.

63 & 64 Vict.
c. xvi.

SOUTHAMPTON HARBOUR ACT 1900

PROVISION AMENDED

AMENDMENTS

Section 15 (Works to form part
of undertaking of Board).The words "Acts and Orders
from time to time relating to
the Board" shall be sub-
stituted for the words
"Southampton Harbour Acts
1863 to 1891".

SOUTHAMPTON HARBOUR ACT 1903

Section 19 (Southampton Har-
bour stock).The words "five shillings" shall
be substituted for the words
"two shillings and sixpence"
wherever those words occur.

Section 21 (Transfer of stock).

The words "five shillings" shall
be substituted for the words
"two shillings and sixpence"
wherever those words occur.

SOUTHAMPTON HARBOUR ACT 1911

Section 6 (Composition for ton-
nage dues).The words "Acts and Orders
from time to time relating to
the Board" shall be substituted
for the words "Act of 1887
and this Act or either of
them".

SOUTHAMPTON HARBOUR ACT 1913

Section 36 (Nomination and elec-
tion of elected members).The words "seven clear days"
shall be substituted for the
words "two clear days".

SOUTHAMPTON HARBOUR ACT 1924

Section 10 (Provision and use of
moorings and other services).The words "Acts and Orders
from time to time relating to
the Board" shall be sub-
stituted for the words
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